

of this motion and the noticed examination date having already passed. The court's order does not permit a cancellation fee based on the demand, nor does it bar any future cancellation fees based on actions of the parties which may post-date this ruling. Finally, the court's ruling does not authorize any collateral interviews.

In summary, leave is granted for the neuropsychological examination of plaintiff subject to the parameters noted above. Counsel shall meet and confer in good faith regarding the date of the future examination.

**10. S-CV-0053223 Myatt, Wayne T v. BJ's Restaurant Inc.**

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendant's motion to compel responses to form interrogatories, set one

Defendant moves for responses to form interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to special interrogatories, set one

Defendant moves for responses to special interrogatories, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel responses to demand for production of documents, set one

Defendant moves for responses to demand for production of documents, set one. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to compel responses is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to compel response to request for itemization of nature and extent of damages

Defendant moves to compel a response to request for itemization of nature and extent of damages. Defendant notes that a code-compliant response to the subject discovery request was served on March 6, 2026. Defendant's motion to compel a response is denied as moot. Defendant's request for monetary sanctions is denied.

Defendant's motion to deem request for admissions, set one, as admitted

Defendant moves deem request for admissions, set one, as admitted. Defendant notes that code-compliant responses to the subject discovery requests were served on March 6, 2026. Defendant's motion to deem request for admissions, set one, as admitted is denied as moot. Under 2033.280 (c), it is mandatory that the court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated this motion. Therefore, defendant's request for monetary sanction is granted, in the amount of \$860.

**11. S-CV-0053338 Demas, John v. Saetes, Peter**

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$102,492 and costs of \$8,706.42 for a total of \$111,198.42 against defendant Peter Saetes. Plaintiffs also move for post-judgment interest from November 7, 2025 pursuant to Code of Civil Procedure section 685.010. No opposition has been filed.

Preliminarily, the court previously continued this motion because defendant Peter Saetes had only been served electronically rather than by mail. At the prior hearing on June 16, 2026, defendant Saetes appeared and stipulated to electronic service for this motion. Moreover, plaintiffs filed proofs of service on June 16, 2026 showing mailed service as well.

The threshold question is whether plaintiff is entitled to recover fees. This action is based on a written 2014 promissory note, which includes an attorneys' fees provision:

10. Attorneys' Fees. If any action or other proceeding is brought for the enforcement of this Note, or because of an alleged dispute, breach, default or misrepresentation in connection with any of the provisions of this Note, the successful or prevailing party or parties shall be entitled to recover reasonable attorneys' fees and other costs incurred in that action or proceeding, in addition to any other relief to which the party may be entitled.

(Complaint, Exh. A.)

A prevailing party in an action on contract is entitled to recover reasonable attorneys' fees where the contract provides for their recovery. (Civ. Code, § 1717, subd. (a).) Here, after a two-day court trial, the court found in favor of plaintiffs as against defendant Saetes in the total amount of \$1,444,867.55. (Judgment, filed Nov. 5, 2025.) The judgment also specified, "Plaintiffs are the prevailing parties in this action and are entitled to costs of suit. Plaintiffs are also entitled to seek attorneys' fees pursuant to the provisions of the 2014 Promissory Note by noticed motion." (*Id.* at p. 3:4–6.) As this